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EUROPEAN UNION AVIATION SAFETY AGENCY

European Union Aviation Safety Agency

Call for tenders EASA/2026/OP/0006 - Digital Communications Services

Open procedure

TENDER SPECIFICATIONS

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1. SCOPE AND DESCRIPTION OF THE PROCUREMENT

1.1. Contracting authority: who is the buyer?

This call for tenders is launched and managed by the European Union Aviation Safety Agency (EASA), referred to as the contracting authority for the purposes of this call for tenders. Further information on EASA can be found on the Agency's Website.

1.2. Subject: what is this call for tenders about?

The subject of this call for tenders is “Digital Communications Services”.

1.3. Lots: is this call for tenders divided into lots?

This call for tenders is not divided into lots. The tenderer must be in a position to provide all the services requested.

1.4. Description: what do we want to buy through this call for tenders?

The purchases that are the subject of this call for tenders, including any minimum requirements, are described in detail below.

Variants (alternatives to the model solution described in the tender specifications) are not allowed. The contracting authority will disregard any variants described in a tender.

1.4.1. Background and objectives

The Agency primarily communicates with the outside world through its website, and it is therefore also the foundation of the communication strategy for outreach to the aviation professional and the general public. The communication department needs a dedicated framework contract to ensure the provision of a website which is robust and stable, allowing for quick, smooth publications. At the same time the platform must be constantly evolving and developing to allow the Agency to further enhance its digital presence. The contractor is expected to inspire and execute these developments, working hand-in-hand with our in-house web publication team.

The Agency’s website serves approximately 21 million pageviews a year. The website uses Drupal as a content management system. The website is complex, supports content across 24 official EU languages with more than 45 content types, 30 taxonomies and 40.000 nodes. Additionally, the website provides a personalised homepage and notification service for every registered subscriber. Subscribers can decide whether they want to stay informed via push or email notifications for every category and set a frequency to receive the notifications.

With the ReFuelEU Aviation and the Flight Emissions Label regulations, the Agency’s mandate for sustainable air transport creates ongoing digital communication needs. The contractor must support EASA by providing essential solutions, such as the Sustainability Portal and the Flight emissions label website.

To ensure that the website remains performant, the Agency needs a modern infrastructure so that it

can quickly scale if the demand grows.

The Agency currently hosts various Drupal-based platforms: EASA Website, Intranet, External Communities, Sustainability Portal and Flight emissions website. The contractor shall deliver end-to-end maintenance and enhancement services for all current and future platforms. This includes ensuring sufficient capacity through dedicated teams to manage multiple parallel workstreams effectively. Additionally, most Drupal-based platforms of EASA are integrated with Mautic (Marketing automation) and Matomo (Analytics).

1.4.2. Detailed characteristics of the purchase

Baseline cybersecurity requirements

The baseline security requirements outlined in Appendix 2 of the draft Contract shall be fully implemented in any new network and information systems to enable the Agency to meet its cybersecurity ambitions. They shall be implemented in existing systems as soon as practicable and no later than the end of year 2027. The baseline cybersecurity requirements apply to the services mentioned in "Digital communication services" and "Content management and improvement services".

Digital communication services include (non-exhaustive):

The list of required services can be found below. This list is non-exhaustive, and the Agency needs flexibility in case of ad-hoc needs. The contractor needs to ensure that the Drupal-based platform remain performant, EASA can publish content, and the contractor can deploy changes quickly.

- Drupal-based platform as a service, including auto-scale functionality to enable up or downscaling monthly in order to reduce yearly costs. The selected contractor shall be fully responsible for the platform as a service (including hosting, security, and DDoS mitigation) and may use subcontracted solution providers to deliver these services.
  Depending on the criticality of the platform the uptime shall be between 99.5% and 99.95% or higher, Recovery Point Objective (RPO) shall be between 4 hours to 15 minutes or less, Recovery Time Objective (RTO) shall be between 24 hours to 1 hour or less.
- Urgent response in the event of a severe platform failure on a 24/7/365 basis, where 'urgent' means a critical incident affecting 10% or more of users such that they can no longer use the application, requiring a response time of no more than 2 hours and a resolution time of no more than 4 hours.
- Support and modify the existing Drupal-based platforms.
- Dedicated support for modifying and maintaining custom code.
- Content migration services.
- Web analytics services based on Matomo.
- Marketing automation services based on Mautic.
- Continuous improvement services to support the Drupal-based platform.
- Content delivery network services. E-mail delivery and push notification services.
- Accessibility services compliant with the EU Web Accessibility Directive (2016/2102).
- Search engine optimisation services.

Content management and improvement services include (non-exhaustive):

- Web content management support, web content creation, optimisation and support services for the Drupal platforms.
- Monitor and act in case the content published on the EASA community network is not in line with the community guidelines or is considered spam. This service shall cover both the automatic prevention of spam and manual review/intervention when needed.
- Integrate different solutions into the Drupal-based platforms, creating an omnichannel experience where data is hosted on one platform and shared with other platforms (EASA Owned or not).
- Implement and develop advanced services such as recommendation engines, A/B or Multivariate testing, page builders, AI, search engines, etc. to optimise the experience of the platforms and increase the efficiency of their usage.
- Integration and configuration of web analytics (Matomo) and marketing automation services (Mautic).
- Develop multilingual native apps for distribution through established channels, i.e. Google Play Store and Apple App Store.
- Capability to provide solutions that relate to the ingestion of large volumes of data.
- Capability to provide solution that relate with the distribution of data though APIs or similar services.
- Integration with translation services and offer multilingual experiences.

User Experience design services include (non-exhaustive):

- Design of graphics, simple animations, infographics for web use, mock-ups for platform improvements.
- Together with the EASA web team, maintain a digital design style guide that can be used as a reference in the development of 3rd party solutions.
- Provide advice in optimising the User Experience of existing and new projects.
- Perform research to improve the User Experience.

Digital Communication Strategy & Advice (linked with the digital communication services listed above) include (non-exhaustive):

- Consult, advise, monitor and provide digital marketing services & material for the web, social media, email and other digital communication channels aligned with EASA´s corporate communication strategy.
- Project management with dedicate team per workstream as required and manage a global EASA roadmap to provide overview of various ongoing projects.
- Support in the financial administration and payments required for online advertisement campaigns (performed by EASA staff or by the contractor on behalf of EASA) and other online services supporting the various platforms. It is foreseen that the financial volume of these services performed by the contractor will be quite low in proportion to the other requested services.
- Advice and provide training for EASA to keep up to date on the latest functionality of content management systems and digital communication services.
- Monitoring of the website's activity with analytics tools and advice on improvements.
- Support and create automated marketing campaigns.

The details of the above-mentioned services will be defined at the level of the requests for specific contracts.

Estimated number of specific contracts per year:

Topic	Recurring per year	Ad-hoc per year
Digital communication	2 specific contracts, details below: i. Platform as a Service for all digital communication channels of the Agency. This includes EASA Website, EASA intranet, EASA External Community. This also includes additional platforms such as Matomo and Mautic. This specific contract also covers pro-active security of the various platforms. ii. Support specific contract for small improvements, ad-hoc changes and support in the day-to-day operations of the digital communication team.	3 specific contracts that cover larger improvements to the digital communication channels.
ReFuelEU	1 specific contract to cover the Platform as a Service for the EASA Sustainability Portal and website related to ReFuelEU Aviation. This includes improvements to the relevant platforms.	N/A
Flight emissions label	1 specific contract to cover the Platform as a Service for the EASA Sustainability Portal and website related to the Flight Emissions Label. This includes improvements to the relevant platforms.	N/A

1.4.3 Use of Artificial Intelligence (AI) systems/models

Without prejudice to the Contractor's obligations with respect to professional secrecy, the use of AI systems or models in the performance of the contract is permitted, provided that the Contractor only enters into such systems information received from the Contracting Authority that is intended for public use, official publication or has already been disclosed to the general public, or uses professional Large Language Models or other AI services that do not use such information to train or improve the underlying models.

For the sake of transparency, where generative AI systems or models, such as Large Language Models (e.g. ChatGPT), are used in the preparation of deliverables for the Agency, the Contractor shall include in the relevant deliverable an explicit statement acknowledging the use of such AI systems or

models and confirming that the deliverable has been subject to human oversight and validation. This requirement applies to all deliverables in written or audio-visual formats, including, but not limited to, reports, images, videos and soundtracks.

The Tenderer shall specify any intended use of AI systems or models in its technical offer, as part of the description of the proposed methodology, and shall disclose the AI tools intended to be used, their purpose, and the measures implemented to ensure compliance with applicable legislation (e.g. data protection and non-discrimination requirements).

The Tenderer shall clearly indicate in its tender whether generative AI systems or models, such as Large Language Models (e.g. ChatGPT), were used in the preparation of the tender. This disclosure requirement is established by the Contracting Authority in the interest of transparency.

1.5. Place of performance: where will the contract be performed?

The services will be performed at the following locations:

- The majority of the execution should be at the contractor's premises;
- Exceptionally, if requested, the contractor shall visit the EASA offices or stakeholder offices.

1.6. Nature of the contract: how will the contract be implemented?

The procedure will result in the conclusion of multiple framework contracts in cascade with maximum 2 contractors.

A framework contract (FWC) establishes a mechanism for future repetitive purchases by the contracting authority to be awarded in the form of specific contracts[1]. The signature of a framework contract does not impose an obligation on the contracting authority to conclude specific contracts with a framework contractor.

The multiple framework contracts will be concluded in the form of separate but identical contracts with 2 contractors at most, provided that there are enough tenderers whose tenders are retained after the evaluation.

For the award of multiple framework contracts in cascade the tenders deemed admissible as a result of the evaluation will be ranked in order to establish a list of contractors and a sequence in which they will be offered specific contracts during the implementation of the framework contracts. The modalities of implementation of the framework contracts in cascade are set out in the draft contract.

Tenderers need to take full account of the full set of procurement documents, including the provisions of the draft contract as the latter will define and govern the contractual relationships to be established between the contracting authority and the successful tenderers. Special attention is to be paid to the provisions specifying the rights and obligations of the contractor, in particular those on payments, performance of the contract, confidentiality, and checks and audits.

☝ Please be aware that if a tenderer to whom the contract is awarded (any of the group members in case of a joint tender) has established debt(s) owed to the EASA, such debt(s) may be offset, in line

[1] Any reference to specific contracts applies also to order forms (a simplified form of specific contract).

with Articles 101(1) and 102 of the Regulation (EU, Euratom) 2018/1046 of the European Parliament and of the Council of 18 July 2018 on the financial rules applicable to the general budget of the Union (Financial Regulation)[2] and the conditions set out in the draft contract, against any payment due under the contract. The contracting authority will verify the existence of overdue debts of the successful tenderers (any of the group members in case of a joint tender), and, if any such debt is found, will inform the tenderer (the group leader in case of a joint tender who will then have the obligation to inform all other group members before signing the contract) that the debt(s) may be offset against any payment under due the contract.

1.7. Volume and value of the contract: how much do we plan to buy?

The *framework contract ceiling* is indicated in Section 5.1.5 of the contract notice.

An indicative estimate of the specific contracts per year under the framework contract is given in Section 1.4.2. These volumes are estimates only and there is no commitment as to the exact quantities to be ordered.

The actual volumes will depend on the quantities which the contracting authority will order through specific contracts. In any case, the *framework contract ceiling*, i.e. the maximum amount to be spent under the framework contracts, shall not be exceeded.

Within three years following the signature of the framework contracts resulting from the current call for tenders, the contracting authority may use the negotiated procedure under point 11.1.e of Annex 1 to the Financial Regulation to procure new services from the contractors up to a maximum of 50% of the initial *framework contract ceiling*. These services would consist in the repetition of similar services entrusted to the contractors and would be awarded under one or more of the following conditions: when new activities of significant impact to the Agency start which were not anticipated in volume at the time of the tender, e.g. opening of new communication streams, integration with other services, extension of scope of the sustainable aviation programme, significant increase in digital marketing needs, etc.

1.8. Duration of the contract: how long do we plan to use the contract?

The framework contracts resulting from the award of this call for tenders will be concluded for at most 48 months. The details of the initial contract duration and possible renewals are set out in the draft contract.

1.9. Electronic exchange system: can exchanges under the contract be automated?

For all exchanges with the contractors during the implementation of the framework contracts as well as for future possible subsequent proceedings, including, but not limited to, for the purposes of EDES (European Union's Early Detection and Exclusion System), the contracting authority may use an electronic exchange system meeting the requirements of Article 151 of the Financial Regulation. At the request of the contracting authority, the use of such a system shall become mandatory for the contractors at no additional cost for the contracting authority. Details on specifications, access, terms and conditions of use will be provided in advance.

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[2] Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council of 23 September 2024 on the financial rules applicable to the general budget of the Union (recast) (OJ L, 2024/2509, 26.09.2024, ELI: https://eur-lex.europa.eu/eli/reg/2024/2509/oj/eng)

1.10. Security

When performing tasks for the contracting authority in execution of the contract, the contractor and its personnel shall comply with the contracting authority's applicable security requirements.

Any financial burden for complying with the security measures (e.g. security background checks, security clearance etc.) will be entirely at the expense of the contractor and not of the contracting authority.

1.11. Other provisions

1.11.1. Fraud prevention and detection

The contractor must assist the contracting authority in its efforts on fraud prevention and detection.

The contractor undertakes to impose the fraud prevention obligations upon its subcontractors and personnel in the relevant contracts signed with them. Upon request, the contractor must provide evidence to the contracting authority that those obligations have been included in the relevant agreements with its subcontractors and personnel.

1.11.2. Environmental considerations

Environmental considerations shall be taken into account by the contractor throughout the complete life cycle of providing products or services in the implementation of the contract.

1.11.3. Equal opportunities

The contractor shall observe a policy on the promotion of equality and diversity in the implementation of the contract, by applying the principles of non-discrimination and equality set out in the EU Treaties in full and in their entirety.

In the implementation of the contract, the contractor shall establish, maintain and promote an open and inclusive working environment which respects human dignity and the principles of equal opportunities, especially through the removal of all obstacles to recruitment and all potential discrimination based on sex, race, color, ethnic or social origin, genetic features, language, religion or belief, political or any other opinion, membership of a national minority, property, birth, disability, age or sexual orientation.

1.11.4. Handovers & Business Continuity

The phasing-out period and contract handover aims to precisely frame the incumbent contractor’s responsibilities when handing over the project to a new contractor. It comprises the delivery of technical documentation, programmes, content (including visual source and source code files) and all knowledge needed by the new contractor to seamlessly deliver the required services.

Several actions and initiatives may be covered under the current framework contract, resulting in different specific contracts. The contractor will undertake all necessary actions for a smooth handover and concluding all work, whenever a specific contract is finished, when the framework contract expires or for any other justified reason at the request of the Agency or ordering services. This will include:

- transferring all materials, including source code and visual source files, background materials, unused materials (texts, images, videos etc.) that were developed but not used, any other related materials in their possession to the Agency;
- transferring all access and ownership of accounts, access to tools/websites and social media, content libraries and collections and all other similar resources, which were created or managed by the contractor for the purposes of the initiative;
- assisting the Agency or any new contractor in taking over the management, including exporting all necessary elements from its own management systems (including, but not limited to, project management systems, validation flows, intermediary products etc.);
- producing all necessary and related documentation, in any necessary form, to ensure proper business continuity either by the Agency or by any new contractor that could take over.

2. GENERAL INFORMATION ON TENDERING

2.1. Legal basis: what are the rules?

This call for tenders is governed by the provisions of the Financial Regulation.

The contracting authority has chosen to award the contracts resulting from this call for tenders through an open procedure pursuant to Article 167(1)(a) of the Financial Regulation.

In this procedure any interested economic operator (any natural or legal person who offers to supply products, provide services or execute works) may submit a tender.

2.2. Entities subject to restrictive measures and rules on access to procurement: who may submit a tender?

Tenderers must ensure that no involved entities (see Section 2.4) nor any subcontractors, including those which do not need to be identified in the tender (see Section 2.4.2), are subject to EU restrictive measures adopted under Article 29 of the Treaty on the European Union (TEU) or Article 215 of the Treaty on the Functioning of the EU (TFEU)[5], consisting of a prohibition to make available or transfer funds or economic resources or to provide financing or financial assistance to them directly or indirectly, or of an asset freeze. The prohibition applies throughout the whole performance of the contract.

This procurement procedure is open on equal terms to any natural or legal person wishing to bid for the assignment and established in any of the European Union Member States, Norway, Iceland, Liechtenstein or Switzerland.

Participation in this call for tenders is open on equal terms to all natural and legal persons coming within the scope of the Treaties, as well as to international organisations.

It is also open to all natural and legal persons established in a third country provided that it has a special agreement with the European Union in the field of public procurement on the conditions laid down in that agreement.

The Agreement on Government Procurement[6] concluded within the World Trade Organisation does not apply. Therefore, the participation to this call for tenders is not open to natural and legal persons established in the countries that have ratified this Agreement.

The rules on access to procurement do not apply to entities on whose capacity tenderers rely to fulfil the selection criteria nor to subcontractors. Subcontracting may not be used with the intent or effect to circumvent the rules on access to procurement.

To enable the contracting authority to verify the access, each tenderer must indicate its country of establishment (in case of a joint tender – the country of establishment of each group member) and must present the supporting evidence normally acceptable under the law of that country. The same document(s) could be used to prove country/-ies of establishment and the delegation(s) of the authorisation to sign, as described in Section 4.3.

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[5] Please note that the EU Official Journal contains the official list and, in case of conflict, its content prevails over that of the EU Sanctions Map.

[6] https://www.wto.org/english/tratop_E/gproc_e/gp_gpa_e.htm

2.3. Registration in the Participant Register: why register?

Any economic operator willing to participate in this call for tenders must be registered in the Participant Register - an online register of organisations and natural persons (participants) participating in calls for tenders or proposals of the European Commission and other EU institutions/bodies.

On registering each participant obtains a Participant Identification Code (PIC, 9-digit number), which acts as its unique identifier in the Participant Register. A participant needs to register only once – the information provided can be further updated or re-used by the participant in other calls for tenders or calls for proposals of the European Commission and other EU institutions/bodies.

☝ **Each participant needs to ensure that its SME status in the Participant Register is registered and kept up to date.**

At any moment during the procurement procedure, the Research Executive Agency Validation Services (hereafter *the EU Validation Services*) may contact the participant and ask for supporting documents on legal existence and status and financial capacity. The requests will be made through the register's messaging system to the e-mail address of the participant's contact person indicated in the register. It is the responsibility of the participant to provide a valid e-mail address and to check it regularly. The documents that may be requested by *the EU Validation Services* are listed in the EU Grants and Tenders Rules on Legal Entity Validation, LEAR appointment and Financial Capacity assessment.

☝ **Please note that a request for supporting documents by the *EU Validation Services* in no way implies that the tenderer has been successful.**

2.4. Ways to submit a tender: how can economic operators organise themselves to submit a tender?

Economic operators can submit a tender, either as a sole economic operator (sole tenderer) or as a group of economic operators (joint tender)[7]. In either case subcontracting is permitted.

Tenders must be drawn and submitted in complete independence and autonomously from the other tenders. A declaration in this regard by each tenderer (in case of a joint tender, by the group leader) shall be requested ***(Annex 2)***.

A natural or legal person cannot participate at the same time and within the same procedure either as member of two or more groups of economic operators or as a sole tenderer and member of another group of economic operators. In such case, all tenders in which that person has participated, either as sole tenderer or as member of a group of economic operators, will be rejected.

Economic operators linked by a relationship of control or of association (e.g. belonging to the same economic/corporate group) are allowed to submit different and separate tenders, provided that each tenderer is able to demonstrate that its tender was drawn independently and autonomously.

A natural or legal person may act as subcontractor for several tenderers as long as the tenders are drawn and submitted in complete independence and autonomously from each other. However, cross subcontracting among tenderers is forbidden, more precisely an entity "A" may participate as tenderer

[7] Each economic operator participating in the joint tender is referred to as "group member".

(either as sole tenderer or as member of a group of economic operators) and as subcontractor to another tenderer "B" within the same procurement procedure. However, in this case it is forbidden that tenderer "B" (or any of its participating members in case of a group of economic operators) is at the same time subcontractor for tenderer "A" (or for the group of economic operators in which "A" participates) within the same procurement procedure. In this case, both tenders A and B shall be rejected.

In order to fulfil the selection criteria set out in Section 3.2 the tenderer can rely on the capacities of subcontractors (see Section 2.4.2) or other entities that are not subcontractors (see Section 2.4.3).

An **"involved entity"** is any economic operator involved in the tender. This includes the following four categories of economic operators:

- sole tenderer,
- group members (including group leader),
- identified subcontractors (see Section 2.4.2), and
- other entities (that are not subcontractors) on whose capacity the tenderer relies to fulfil the selection criteria.

The role of each entity involved in a tender must be clearly specified in the eSubmission application: i) sole tenderer, ii) group leader (in case of a joint tender), iii) group member (in case of a joint tender), or iv) subcontractor[8].

For an entity on whose capacities the tenderer relies to fulfil the selection criteria (that is not a subcontractor), this role is defined in the commitment letter (***Annex 5.2***)

2.4.1. Joint tenders

A joint tender is a situation where a tender is submitted by a group (with or without legal form) of economic operators regardless of the link they have between them in the group. The group as a whole is considered a tenderer[9].

All group members assume joint and several liability towards the contracting authority for the performance of the contract as a whole.

Group members must appoint from among themselves a group leader (the group leader) as a single point of contact authorised to act on their behalf in connection with the submission of the tender and all relevant questions, clarification requests, notifications, etc., that may be received during the evaluation, award and until the contract signature. All group members (including the group leader) must sign an Agreement/Power of attorney drawn up in the model attached in **Annex 3**.

The joint tender must clearly indicate the role and tasks of each group member, including those of the group leader who will act as the contracting authority's contact point for the contract's administrative or financial aspects and operational management. The group leader will have full authority to bind the group and each of its members during contract execution.

If the joint tender is successful, the contracting authority shall sign the contract with the group leader, authorised by the other members to sign the contract also on their behalf via the Agreement/Power of

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[8] Only identified subcontractors (see Section 2.4.2) must be specified in the eSubmission application.

[9] References to *tenderer* or *tenderers* in this document shall be understood as covering both sole tenderers and groups of economic operators submitting a joint tender.

attorney drawn up in the model attached in ***Annex 3***.

Changes in the composition of the group during the procurement procedure (after the deadline for submission of tenders and before contract signature) shall lead to rejection of the tender, with the exception of the following case:

- case of a merger or takeover of a group member (universal succession), provided that the following cumulative conditions are fulfilled:

  - the new entity is not subject to restrictive measures, has access to procurement (see Section 2.2) and is not in an exclusion situation (see Section 3.1),
  - all the tasks assigned to the former entity are taken over by the new entity member of the group,
  - the group meets the selection criteria (see Section 3.2),
  - the change must not make the tender non-compliant with the procurement documents,
  - the terms of the originally submitted tender are not altered substantially and the evaluation of award criteria of the originally submitted tender are not modified,
  - the new entity undertakes to replace the former entity for the implementation of the contract, in case of an award.

2.4.2. Subcontracting

Subcontracting is the situation where the contractor enters into legal commitments with other economic operators, which will perform part of the contract on its behalf. The contractor retains full liability towards the contracting authority for performance of the contract as a whole.

The following shall not be considered subcontracting:

a) Use of workers posted to the contractor by another company owned by the same group and established in a Member State ("intra-group posting" as defined by Article 1, 3, (b) of Directive 96/71/EC concerning the posting of workers in the framework of the provision of services).
b) Use of workers hired out to the contractor by a temporary employment undertaking or placement agency established in a Member State ("hiring out of workers" as defined by Article 1, 3, (c) of Directive 96/71/EC concerning the posting of workers in the framework of the provision of services).
c) Use of workers temporarily transferred to the contractor from an undertaking established outside the territory of a Member State and that belongs to the same group ("intra-corporate transfer" as defined by Article 3, (b) of Directive 2014/66/EU on the conditions of entry and residence of third-country nationals in the framework of an intra-corporate transfer).
d) Use of staff without employment contract ("self-employed persons working for the contractor"), without the tasks of the self-employed persons being particular well-defined parts of the contract.
e) Use of suppliers and/or transporters by the contractor, in order to perform the contract at the place of performance, unless the economic activities of the suppliers and/or the transporting services are within the subject of this call for tenders (see Section 1.4).
f) Performance of part of the contract by members of an EEIG (European Economic Interest Grouping), when the EEIG is itself a contractor or a group member.

The persons mentioned in points a), b), c) and d) above will be considered as "personnel" of the contractor as defined in the contract.

All contractual tasks may be subcontracted unless the procurement documents expressly reserve the

execution of certain critical tasks to the sole tenderer itself, or in case of a joint tender, to a group member.

By filling in the form available in ***Annex 4*** (List of identified subcontractors), tenderers are required to give an indication of the proportion of the contract that they intend to subcontract, as well as to identify and describe briefly the envisaged contractual roles/tasks of subcontractors meeting any of these conditions (hereafter referred to as *identified subcontractors*):

- subcontractors on whose capacities the tenderer relies upon to fulfil the selection criteria as described under Section 3.2;
- subcontractors whose intended individual share of the contract, known at the time of submission, is above 15%.

Any such subcontractor must provide the tenderer with a commitment letter drawn up in the model attached in ***Annex 5.1*** and signed by its authorised representative.

☝ Each tenderer shall identify such subcontractors and provide the commitment letters with its tender. The information must be true and correct at the time of submitting the tender. Any changes or additions regarding the envisaged subcontractors after the deadline for submission of tenders must be justified to the contracting authority and are subject to its prior written authorisation.

The above rules apply also where the economic operators, which will perform part of the contract on behalf of a successful tenderer, belong to the same economic/corporate group as the sole tenderer or a member of the group submitting the joint tender.

Changes concerning subcontractors identified in the tender (withdrawal/replacement of a subcontractor, additional subcontracting) during the procurement procedure (after the deadline for submission of tenders and before contract signature) require the prior written approval of the contracting authority subject to the following verifications:

- any new subcontractor is not subject to restrictive measures, has access to procurement if the rules on access to procurement apply also to subcontractors (see Section 2.2) and is not in an exclusion situation (see Section 3.1),
- the tenderer still fulfils the selection criteria and the new subcontractor fulfils the selection criteria applicable to it individually, if any;
- the terms of the originally submitted tender are not substantially altered, i.e. all the tasks assigned to the former subcontractor are taken over by another involved entity, the change does not make the tender non-compliant with the tender specifications, and the evaluation of the award criteria of the originally submitted tender is not modified.

Subcontracting to subcontractors identified in a tender that was accepted by the contracting authority and resulted in a signed contract, is considered authorised.

2.4.3. Entities (not subcontractors) on whose capacities the tenderer relies to fulfil the selection criteria

In order to fulfil the selection criteria a tenderer may also rely on the capacities of other entities (that are not subcontractors), regardless of the legal nature of the links it has with them. It must in that case prove that it will have at its disposal the resources necessary for the performance of the contract by producing a commitment letter in the model attached in ***Annex 5.2***, signed by the authorised representative of such an entity, and the supporting evidence that those other entities have the

respective resources[10].

☝ The above rules apply also where the economic operators on whose capacities the tenderer relies to fulfil the selection criteria (that are not subcontractors) belong to the same economic/corporate group as the sole tenderer or a member of the group submitting the joint tender.

2.4.4. Rules common to subcontractors and entities (not subcontractors) on whose capacities the tenderer relies to fulfil the selection criteria

If a successful tenderer intends to rely on another entity to meet the minimum levels of economic and financial capacity, the contracting authority may require the entity to sign the contract or, alternatively, to provide a joint and several first-call financial guarantee for the performance of the contract.

With regard to technical and professional selection criteria, a tenderer may rely on the capacities of other entities only when these entities will perform the works or services for which these particular capacities are required. In such cases, they will either assume the role of subcontractors, or, where the exceptions listed in Section 2.4.2 are appliable, they will assume the role of entities on whose capacities the tenderer relies to fulfil the selection criteria without being subcontractors.

☝ Relying on the capacities of other entities is only necessary when the capacity of the tenderer is not sufficient to fulfil the required minimum levels of capacity. Abstract commitments that other entities will put resources at the disposal of the tenderer will be disregarded.

[10] This does not apply to subcontractors on whose capacity the tenderer relies to fulfil the selection criteria – for these the documentation required for subcontractors must be provided.

3. EVALUATION AND AWARD

The evaluation of the tenders that comply with the submission conditions will consist of the following elements:

- Check if the tenderer has access to procurement (see Section 2.2);
- Verification of administrative compliance (if the tender is drawn up in one of the official EU languages and the required documents signed by duly authorised representative(s) of the tenderer);
- Verification of non-exclusion of tenderers on the basis of the exclusion criteria;
- Verification of compliance with the minimum requirements specified in the procurement documents
- Selection of tenderers on the basis of selection criteria;
- Evaluation of tenders: compliance with the requirements of the procurement documents and on the basis of the award criteria.
- Verification if the tenderer including any subcontractor is not subject to EU restrictive measures (see Section 2.2) or any other rejection grounds from the award procedure.

The contracting authority will evaluate the above mentioned elements in the order that it considers to be the most appropriate.

If the evaluation of one or more elements demonstrates that there are grounds for rejection, the tender will be rejected and will not be subjected to full evaluation. The rejected tenderers will be informed of the ground for rejection without being given any feedback on the non-assessed content of their tenders. The ranked tenderers will have access to information on the relative advantages of the successful tenderer(s) and its (their) total financial offer amount, if they request so in writing after being informed of the result of the procedure. This will be without the prejudice to further checks and to the provision of supporting documents on exclusion and/or selection criteria if the contract cannot be signed with the presumed winner(s). Only the tenderers for whom the verification of all elements did not reveal grounds for rejection can be awarded the contracts resulting from this call for tenders.

The evaluation will be based on the information and evidence contained in the tenders and, if applicable, on additional information and evidence provided at the request of the contracting authority during the procedure. If any of the declarations or information provided proves to be false, the contracting authority may impose administrative sanctions (exclusion or financial penalties) on the entity providing the false declarations/information.

For the purposes of the evaluation related to exclusion and selection criteria the contracting authority may also refer to publicly available information, in particular evidence that it can access on a national database free of charge.

3.1. Exclusion criteria

The objective of the exclusion criteria is to assess whether the tenderer is in any of the exclusion situations listed in Article 138(1) of the Financial Regulation.

Tenderers found to be in an exclusion situation will be rejected.

As evidence of non-exclusion, each tenderer[11] needs to submit with its tender a Declaration on

[11] See Annex 1 which of the involved entities participating in a tender need to provide the Declaration on Honour.

Honour[12] in the model available in ***Annex 2***.[13] The declaration must be signed by an authorised representative of the entity providing the declaration. Where the declaration has been signed by hand, the original does not need to be submitted to the contracting authority, but the latter reserves the right to request it from the tenderer at any time during the record-keeping period specified in Section 4.3.

The initial verification of non-exclusion of tenderers will be done on the basis of the submitted declarations and consultation of the European Union's Early Detection and Exclusion System.

The documents mentioned in the Declaration on Honour as supporting evidence on non-exclusion must be provided with the tender[14].

At any time during the procurement procedure, the contracting authority may request information on natural or legal persons that are members of the administrative, management or supervisory body or that have powers of representation, decision or control, including legal and natural persons within the ownership and control structure and beneficial owners, and appropriate evidence that none of those persons are in one of the exclusion situations referred to in Section A point (1) (c) to (f) of the Declaration on Honour.

☝ If the tenderer does not provide valid documentary evidence within the deadlines set by the contracting authority, the latter reserves the right to reject the tender. In any event, in case a tenderer proposed for the award of the contract fails to comply with the above evidence requirement, its tender will be rejected, unless the tenderer can justify the failure on the grounds of material impossibility to provide such evidence.

Annex 1 specifies which of the involved entities participating in a tender need to provide the Declaration on Honour and, when requested by the contracting authority, the supporting evidence.

Please note that a request for evidence in no way implies that the tenderer has been successful.

3.2. Selection criteria

The objective of the selection criteria is to assess whether the tenderer has the legal, regulatory, economic, financial, technical and professional capacity to perform the contract.

The selection criteria for this call for tenders, including the minimum levels of capacity, the basis for assessment and the evidence required, are specified in the following subsections.

Tenders submitted by tenderers not meeting the minimum levels of capacity will be rejected.

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[12] The European Single Procurement Document (ESPD) may not be used yet in calls for tenders of the European Union Aviation Safety Agency (EASA).

[13] Unless the same declaration has already been submitted for the purposes of another award procedure of the European Union Aviation Safety Agency (EASA), the situation has not changed, and the time elapsed since the issuing date of the declaration does not exceed one year.

[14] The obligation to provide the supporting evidence will be waived in the following situations:

- if the same documents have already been provided in a previous award procedure of the European Union Aviation Safety Agency (EASA), have been issued no more than one year before the date of their request by the contracting authority and are still valid at that date;
- if such evidence can be accessed by the contracting authority on a national database free of charge, in which case the economic operator shall provide the contracting authority with the internet address of the database and, if needed, the necessary identification data to retrieve the document;
- if there is a material impossibility to provide such evidence.

When submitting its tender each tenderer shall declare on honour that it fulfils the selection criteria for this call for tenders. The model Declaration on Honour available in ***Annex 2*** shall be used.

The initial assessment of whether a tenderer fulfils the selection criteria will be done on the basis of the submitted declaration(s).

The subsections below specify which selection criteria evidence must be provided with the tender or may be requested later, at any time during the procurement procedure, within a deadline given by the contracting authority[16].

The evidence must be provided in accordance with the applicable basis for assessment of each criterion: in case of a consolidated assessment – only by the involved entities who contribute to the fulfilment of the criterion, and in case of individual assessment – by each entity to whom the criterion applies individually.

In case not all selection criteria evidence is requested with the tender, all tenderers are **invited to prepare in advance the documentary evidence**, since they may be requested to provide such evidence within a short deadline. In any event, the tenderers proposed by the evaluation committee for the award of the contracts will be requested to provide such evidence.

☝ If the tenderer does not provide valid documentary evidence within the deadlines set by the contracting authority, the contracting authority reserves the right to reject the tender. In any event, in case a tenderer proposed for the award of the contract fails to comply with the above evidence requirement, its tender will be rejected, unless there is a ground for a waiver.

Please note that a request for evidence in no way implies that the tenderer has been successful.

3.2.1. Legal and regulatory capacity

Tenderers can be natural or legal persons. Tenderers are not obliged to take a specific legal form in order to submit their tenders.

Where tenderers submit a tender through an entity, which lacks legal personality (e.g., a branch), the compliance with the exclusion criteria, selection criteria, the rules on access to procurement as well as the absence of restrictive measures shall be assessed at the level of the tenderers.

Tenderers must prove that they have the legal capacity to perform the contract and the regulatory capacity to pursue the professional activity necessary to carry out the work subject to this call for tenders.

The legal and regulatory capacity shall be proven by the evidence listed below:

- a duly filled in and signed **Business Partners Form**, to be downloaded, depending on the tenderer's nationality and legal form (i.e. individual, private/public company), from the

[16] The obligation to provide the supporting evidence will be waived in the following situations:
- if the same documents have already been provided in a previous award procedure of the European Union Aviation Safety Agency (EASA) and are still up-to-date;
- if such evidence can be accessed by the contracting authority on a national database free of charge, in which case the economic operator shall provide the contracting authority with the internet address of the database and, if needed, the necessary identification data to retrieve the document.

following website: https://commission.europa.eu/publications/business-partners-legal-entities-and-bank-accounts_en#business-partners--legal-entities-and-bank-accounts.

- a copy of any official document (i.e. official gazette, register of companies etc.) showing the individual's / contractor's name and address and the registration number given to it by the national authorities.
- a copy of the VAT registration document (if applicable) should be submitted if the VAT number does not appear on the official document referred to above;

All of the above-specified evidence of legal and regulatory capacity must be provided with the tender.

3.2.2. Economic and financial capacity

Tenderers must comply with the following selection criteria in order to prove that they are in the stable financial position and have the necessary economic and financial capacity to perform the contract.

Criterion F1	
Minimum level of capacity	Average yearly turnover of the last two financial years above EUR 1 500 000.
Basis for assessment	This criterion applies to the tenderer as a whole, i.e. a consolidated assessment of the combined capacities of all involved entities will be carried out.
Evidence	Provision of **completed Annex 8 – Economic & Financial Capacity**. The Agency reserves the right to request balance sheets or any other supporting documents to verify/confirm the financial standing of the tenderer.

☝ All of the above-specified evidence of economic and financial capacity must be provided with the tender.

3.2.3. Technical and professional capacity

☝ With regard to technical and professional selection criteria, a tenderer may only rely on the capacities of other entities where the latter will perform the works or services for which these capacities are required. The entity on whose capacity the tenderer relies will either assume the role of a subcontractor or fall within the exceptions listed in Section 2.4.2.

Tenderers must comply with the following selection criteria in order to prove that they have the necessary technical and professional capacity to perform the contract:

Criterion T1	
The tenderer must prove experience in the field of publicly accessible Drupal-based platforms.	
Minimum level of capacity	The tenderer shall demonstrate that, during the three years preceding the deadline for submission of tenders, it completed (or has ongoing) at least **two projects** involving publicly accessible Drupal-based platforms, with each project having a minimum contract value of EUR 100 000, and being comparable in scope and complexity to the EASA website or an equivalent project. Note: The reference project does not need to match the scale and characteristics of the EASA website in every respect, provided that it demonstrates comparable overall scope, complexity and capability. For the purposes of this criterion, a project will be considered comparable in scope and complexity where it demonstrates experience in delivering and operating a digital platform or website encompassing **the following three characteristics**: i. High traffic volume, i.e. at least 2500 pageviews per day; and ii. Structural complexity, incl. the management of a highly structured content system. At least 5 Drupal content types; and iii. Modern infrastructure, such as container-based hosting services, Platform or Software as a Service (PaaS or SaaS) environments, or equivalent cloud-native technologies. Each reference project shall demonstrate experience encompassing all of the above characteristics. Further background information on the scope and complexity is provided in Section "1.4.1. Background and objectives" and at https://www.easa.europa.eu/web/explained.
Basis for assessment	This criterion applies to the tenderer as a whole, i.e. the consolidated assessment of combined capacities of all involved entities (all entities whose capacities are relied upon for the fulfilment of this criterion) will be carried out.
Evidence	A list of projects meeting the minimum level of capacity. The list shall include for each project: the name of the client, the project name and a brief description of the scope and services provided, the contract value, demonstrating the minimum value of **EUR 100,000,** the contract start and, where applicable, completion date.

	Additionally, the tenderer shall **clearly indicate how the three characteristics listed (see minimum level of capacity) are met.** For projects that are still ongoing, only the part of the project completed during the three-year reference period shall be taken into consideration. As supporting documents for each project reference, the contracting authority reserves the right to request statements issued by the clients and/or to contact the clients directly to verify the information provided.
Criterion T2	
The tenderer must prove experience in the field of restricted access (login required) Drupal-based platforms.	
Minimum level of capacity	The tenderer shall demonstrate that, during the three years preceding the deadline for submission of tenders, it completed (or has ongoing) at least one project involving a restricted-access (login-required), Drupal-based digital platform, comparable in scope and complexity to the EASA Sustainability Portal or an equivalent project. Note: The reference project does not need to match the scale and characteristics of the EASA Sustainability Portal in every respect, provided that it demonstrates comparable overall scope, complexity and capability. For the purposes of this criterion, a project will be considered comparable in scope and complexity where it demonstrates experience in delivering and operating a restricted-access, Drupal-based digital platform encompassing the following three characteristics: i. User login required with role-based access controls and the administration of access rights for different user groups and stakeholders; and ii. Multi-step workflows (enabling specific user groups to create, process or approve or content or work items in accordance with defined business processes); and iii. Modern infrastructure, such as container-based hosting services, Platform or Software as a Service (PaaS or SaaS) environments, or equivalent cloud-native technologies. The reference project shall demonstrate experience

	encompassing all of the above characteristics. Further background information on the scope and complexity is provided in Section "1.4.1. Background and objectives" and at the EASA Sustainability Portal.
Basis for assessment	This criterion applies to the tenderer as a whole, i.e. the consolidated assessment of combined capacities of all involved entities (all entities whose capacities are relied upon for the fulfilment of this criterion) will be carried out.
Evidence	A list of projects meeting the minimum level of capacity. The list shall include for each project: the name of the client, the project name and a brief description of the scope and services provided, the project start date and, where applicable, completion date, the total project/contract value, and the role and scope of responsibilities of the tenderer. Additionally, the list of projects shall **clearly indicate how the three characteristics listed (see minimum level of capacity) are met.** For projects that are still ongoing, only the part of the project completed during the three-year reference period shall be taken into consideration. As supporting documents for each project reference, the contracting authority reserves the right to request statements issued by the clients and/or to contact the clients directly to verify the information provided.

Criterion T3

The tenderer confirms that they implement the necessary organisational and technical measures and mechanisms to prevent, detect and handle any security incident in an appropriate manner in compliance with **Appendix 2** and **Appendix 3** of the draft Contract.

The tenderer further confirms availability and will provide the contact details of its responsible **IT Security Manager (including backup) upon request**.

Minimum level of capacity	Compliance with Appendix 2 and Appendix 3 of the draft Contract and availability of a responsible IT Security Manager (including backup).
Basis for assessment	This criterion will be checked against the sole tenderer or each group member in case of a joint tender.
Evidence	**Confirmation statement** under **Annex 7** concerning **Appendix 2 and Appendix 3** of the draft Contract**,** incl. availability and indication of tenderer's **IT Security Manager contact** (including backup).

☝ **Only evidence relating to T3 (*Confirmation statement)* must not be provided with the tender and may be requested by the contracting authority at any time during the procedure. All other (T1 and T2) of the above-specified evidence of technical and professional capacity must be provided with the tender.**

☝ Involved entities (see Section 2.4) and all subcontractors, including those which do not need to be identified in the tender (see Section 2.4.2), must not be subject to professional conflicting interests which may negatively affect the contract performance. Where the contracting authority has established such conflicting interests, it may conclude that the tenderer or an involved entity does not possess the required professional capacity to perform the contract to an appropriate quality standard.

The presence of conflicting interests shall be examined during the evaluation phase based in particular on the statements made through the Declarations on Honour and, where applicable, the commitment letters (***Annex 5.1 and Annex 5.2)***.

When evaluating the tenders submitted in the present procedure for the award of framework contracts, the contracting authority may consider the risk of professional conflicting interests with reference to the nature and subject of the specific contracts under the framework contracts.

The Agency reserves the right to reject any tenderer that is found to be in a situation of professional conflicting interest in relation to this tender/contract.

Further details and obligations concerning professional conflicting interests are set out in the draft contract.

3.3. Evaluation of the tenders

3.3.1. Compliance with the requirements specified in the procurement documents and minimum requirements specified in the procurement documents

By submitting a tender a tenderer commits to perform the contract in full compliance with the terms and conditions of the procurement documents for this call for tenders. Particular attention is drawn to the following minimum requirements specified in Section 1.4 of these specifications and, to the fact that the tenders must comply with applicable data protection, environmental, social and labour law obligations established by Union law, national legislation, collective agreements or the international environmental, social and labour conventions listed in Annex X to Directive 2014/24/EU as well as compliance with the data protection obligations resulting from Regulation (EU) 2016/679[17].

Further, the following minimum requirements must be respected:

- The content of the technical offer shall contain all requested information/documentation for each technical criterion as described in section 3.3.3, in line with the description of the

[17] Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), OJ L 119, 4.5.2016, p. 1–88.

services in Section 1.4;

- The financial offer shall include all requested information/prices as described in Section 3.3.4.

The minimum requirements shall be observed throughout the entire duration of the contract. Compliance with these requirements is mandatory and cannot be subject to any assumptions, limitations, conditions, or reservations on the part of a tenderer.

Tenderers must declare when submitting their tenders in eSubmission whether their tenders comply with the minimum requirements specified in the procurement documents.

☝ **Tenders that are not compliant with the applicable minimum requirements shall be rejected.**

3.3.2. Award criteria

The objective of the award criteria is to evaluate the tenders with a view to choosing the most economically advantageous tender.

Tenders will be evaluated on the basis of the following award criteria and their weighting:

1. Price - 40%

The price considered for evaluation will be the total price of the tender, covering all the requirements set out in the tender specifications.

2. Quality - 60%

The quality of the tender will be evaluated based on the following criteria:

3.3.3 Technical offer & Evaluation

The quality of technical offers reaching this stage will be evaluated in accordance with the technical award criteria and the associated weighting as detailed in the evaluation grid below.

Technical Quality Threshold: Only tenders scoring **70 points or more** (of a maximum of 100 points) against the technical award criteria will have their financial offer evaluated.

Additionally, there is a minimum threshold for technical award criterion 1" Simulation exercise: Mock-ups for desktop and mobile" of **30 points or more** (of a maximum of 38 points).

Instructions applicable to all technical award criteria:

Tenderers are expected to submit a concise, to the point and clearly written technical offer tailored to EASA. The technical offer shall contain all necessary information to allow evaluation of the tender (according to the technical award criteria), be consistent with the technical specifications and be well-structured (e.g. containing a table of contents and consecutive page numbering). The Technical Offer shall not exceed 80 pages (A4 format, minimum font size 11, single spacing).

The page limit applies to the technical offer linked to the technical award criteria and excludes the cover page and table of contents. Any pages exceeding the maximum limit will not be evaluated.

Tenderers are requested to submit a technical offer which shall specifically address the requirements of the described simulation exercise and shall be prepared specifically for this call for tender and

tailored accordingly. The tenderer shall clearly demonstrate and prove via a detailed description and mock-ups that they possess the relevant technical capabilities to deliver the solutions proposed in the simulation during contract implementation. The tenderer should not provide a working solution for the simulation exercise due to that fact that the functionality will be assessed via mock-ups. No actual development is needed. Additionally, the tenderer shall submit a separate image file for each mock-up in a standard image format (i.e. jpg, png). Links to online design tools or cloud-based design platforms shall not be accepted as a substitute for the required image files.

We advise the tenderer to carefully look at the technical award criteria and submit the technical offer adhering to these criteria.

The technical offer submitted by the tenderer shall contain four chapters, each chapter shall focus on one award criterion.

Please note that the Annex 6 - Model financial offer is used exclusively for the assessment of the financial evaluation and is entirely separate from the technical award criteria.

No	TECHNICAL AWARD CRITERIA	CONTENT OF TECHNICAL OFFER	MAX POINTS
1	**Simulation exercise: Mock-ups for desktop and mobile** - Quality of the design (incl. creativity) and compliance with EASA brand and visual identity (i.e. consistency with and appropriate alignment to the EASA brand and visual identity). The EASA Pro website may be used as a reference: https://www.easa.europa.eu/en/home (or similar) - Quality of the approach to achieve usability and adherence to usability best practices on desktop and mobile - Quality of the proposed approach to onboard and engage with anonymous users and how they will become registered users to increase visibility when information is published.	The simulation exercise as described in **Annex 9 – Simulation exercise.** The tenderer shall also follow the instructions mentioned above.	**38**
2	**Simulation exercise: Content and data management** - Quality, efficiency gains by using AI and suitability of the proposed approach to enhanced content management - Quality and completeness of the proposed data management strategy - Quality, level of security, scalability, and suitability of the proposed technical infrastructure	The simulation exercise as described in **Annex 9 – Simulation exercise** The tenderer shall also follow the instructions mentioned above.	**30**
3	**Simulation exercise: Team composition and communication** - Quality, suitability, and relevance of the proposed project team, including the composition of the team, roles and responsibilities of each proposed team member/profile in relation to the deliverables covered by Technical Award Criteria 1 and 2 (i.e. the	The simulation exercise as described in **Annex 9 – Simulation exercise** The tenderer shall also follow the instructions mentioned above.	**20**

	simulation exercise). - Quality and effectiveness of the proposed communication and collaboration approach, incl. workflows and tools used for the purpose of the simulation exercise		
4	**Contribution to Drupal community** Quality and relevance of the tenderer's approach to contributing to the Drupal open-source community in a manner relevant to the implementation of the contract, and the expected benefits of that approach for the quality and sustainability of the EASA Digital solutions during contract implementation	The tenderer shall describe its general approach to contributing to the Drupal community relevant to the implementation of the contract and explain how its contributions to the Drupal community can contribute to the quality and sustainability of the EASA Digital solutions during contract implementation. As part of the description, the tenderer shall outline the ways in which it contributes to the Drupal community, for example through code contributions, knowledge sharing, participation in webinars or conferences, or other relevant activities. The evaluation will focus on the relevance and quality of the proposed approach, the tenderer's demonstrated experience in contributing to the Drupal community, and the extent to which these are expected to contribute to the quality and sustainability of the EASA Digital solutions during contract implementation. The tenderer shall also follow the instructions mentioned above.	**12**
	TOTAL		**100**

3.3.4 Assessment of the Price

Financial offers shall be assessed only if the technical thresholds as per Section 3.3.3 of the tender specifications have been reached.

Financial Offer & Evaluation

The financial offers will be first checked for any arithmetical errors in computation and summation. Errors will be corrected by the Evaluation Committee as follows: where there is a discrepancy between a unit price and the total amount derived from the multiplication of the unit price and the quantity, the unit price as quoted will be the price considered.

The financial evaluation will be made on the basis of the prices offered in the Model financial offer (Annex 6). The financial offer must be presented strictly in the format provided in **Annex 6 and shall comprise of two parts**:

- ✓ **A – Price list**, which will be taken into account as the valid and binding prices for the later contract implementation, and,
- ✓ **B – Scenario**, which is derived from the prices presented in Part A, and form the basis of the financial evaluation as described below.

The following weightings shall be applied:

Item	Description	Weighting (W)
A - Price List	Sum of weighted prices (as per the percentage attributed to each price item in Annex 6)	60%
B - Scenario	Total Price	40%
	TOTAL	**100%**

The financial score shall be calculated based on the following formula:

Financial Score for Tender X = 100*[<W>*(PAmin/PAx)] + 100*[<W>*(PBmin/PBx)]

Where:

P(A/B)min = Cheapest Price for (A/B)

P(A/B)x = Price for (A/B) from Tender X

W = respective weighting

Financial Offer

- The Annex 6 – Model financial offer shall be submitted in both pdf and xls format, in case of inconsistencies, the xls format prevails.

- While filling in Annex 6 – Model financial offer the tenderer shall take into consideration all requirements defined in the Tender Specifications. Failure to comply with these requirements may lead to rejection of the tender.

- The Annex 6 – Model financial offer shall not include any notes/additional information/clarifications inserted or attached by the tenderer. Failure to comply with this requirement may lead to rejection of the tender.

- Every tenderer is required to verify that the results of all data entered in the Annex 6 – Model financial offer are correct and ensure that all averages, sub-totals, totals etc. are correct and consistently provided.

- A price shall be indicated for each category and must not amount to zero. Failure to comply with this requirement may lead to rejection of the tender.

- Please note that the prices indicated in Part A- Price list are maximum prices and will be binding on the contractor throughout the contract implementation.

- Prices must be quoted in EURO and include all expenses necessary to perform the contract, such as equipment required to perform the work. In special cases, where duly justified by the nature of the project and agreed with the Agency a need and/or maximum budget for the following reimbursable costs may be indicated by EASA in the Request for Specific Contract: other costs incurred by the contractor linked to the services requested (e.g. hosting services, email deliver services, etc.)

- The price quoted is fixed and shall be subject to NO revision.

  The financial offer shall be:
  - expressed in EURO. Tenderers from countries outside the euro zone have to quote their prices in euro. The price quoted may not be revised in line with exchange rate movements. It is for the tenderer to bear the risks or the benefits deriving from any variation.
  - quoted free of all duties, taxes and other charges, i.e. also free of VAT.

  EASA is exempt from such charges in the EU under Articles 3 and 4 of the Protocol on the Privileges and Immunities of the European Union of 8 April 1965 annexed to the Treaty on

the Functioning of the European Union. Exemption is granted to EASA by the governments of the Member States, either through refunds upon presentation of documentary evidence or by direct exemption. In case of doubt about the applicable VAT system, it is the tenderer's responsibility to contact his or her national authorities to clarify the way in which the European Union is exempt from VAT.

- Costs incurred in preparing and submitting tenders are borne by the tenderer and shall not be reimbursed.

3.3.5. Award (ranking of tenders)

Tenders shall be ranked according to the best price-quality ratio in accordance with the formula below:

Consolidated score = Technical score*0,6 + Financial score*0,4

Should the outcome of the formula lead to two or more tenders with the same result, the tenderer who has been awarded the highest marks for quality will be deemed to be the most economically advantageous tender. This approach will continue to be applied to each of the award criteria in the descending order listed in below until a most economically advantageous tender can be determined: technical award criterion no. 1, technical award criterion no. 2, technical award criterion no. 3, technical award criterion no. 4.

☝ The multiple framework contracts in cascade shall be awarded to the first 2 ranked tenders, which comply with the minimum requirements specified in the procurement documents and are submitted by tenderers not subject to restrictive measures, having access to procurement, not in an exclusion situation and fulfilling the selection criteria. The ranking will determine the sequence in which the contractors will be offered specific contracts during the implementation of the framework contracts.

If there is only one ranked tenderer, the contracting authority may decide to cancel the procurement procedure or sign a single framework contract instead.

☝ **Detection of abnormally low tenders**
Tenderers must be aware of Point 23 of Annex I to the Financial Regulation on abnormally low tenders and of the possibility for rejection of the tender based on it.

4. FORM AND CONTENT OF THE TENDER

4.1. Form of the tender: how to submit the tender?

Tenders are to be submitted via the eSubmission application according to the instructions laid down in the Invitation letter and the eSubmission Quick Guide available at the link below:

https://webgate.ec.europa.eu/fpfis/wikis/x/5QEkh

☝ Make sure you prepare and submit your tender in eSubmission early enough to ensure it is received within the deadline for receipt indicated under Section 5.1.12 of the contract notice and/or on Funding & Tenders Portal (F&T Portal)[17].

4.2. Content of the tender: what documents to submit with the tender?

The documents to be submitted with the tender in eSubmission are listed in ***Annex 1***.

The following requirements apply to the technical and financial tender to be uploaded in eSubmission:

- *Technical tender*

The technical tender must provide all the information needed to assess the compliance with Tender specifications. Tenders deviating from the minimum requirements or not covering all the requirements may be rejected on the basis of non-compliance and not evaluated further.

As per Section 1.4.3 of the Tender Specifications the tenderer must clearly indicate in their offer whether generative AI systems/models such as Large Language Models (e.g. ChatGPT), were utilised in the preparation of their offers.

- *Financial offer*

A complete financial tender, including the breakdown of the price, needs to be submitted. For this purpose, the Annex 6 - Model financial offer shall be used.

4.3. Signature policy: how can documents be signed?

Where a document needs to be signed, the signature must be either hand-written or, preferably, a qualified electronic signature (QES) as defined in Regulation (EU) No 910/2014 on electronic identification and trust services for electronic transactions in the internal market (the *eIDAS Regulation*).

Tenderers are strongly encouraged to sign with a QES[19] all documents requiring a signature and only exceptionally to sign such documents by hand as hand-written signatures lead to an additional administrative burden for both the tenderer and the contracting authority. The originals of any hand-signed documents (other than the contract) do not need to be submitted to the contracting authority but the tenderer must keep them for a period of five years starting from the notification of the outcome of the procedure or, where the tenderer has been awarded a contract resulting from this call for tenders

[17] https://ec.europa.eu/info/funding-tenders/opportunities/portal/screen/home

[19] See here how to apply a QES on a document exchanged with a European institution, body or agency.

and the contract has been signed, the payment of the balance.

All documents must be signed by the signatories (when they are individuals) or by their duly authorised representatives.

For the following documents, when signed by representatives, tenderers must provide evidence for the delegation of the authorisation to sign:

- The Declaration on Honour of the tenderer (in case of a joint tender – the Declarations on Honour of all group members);

- (in the case of a joint tender) the Agreement/Power(s) of attorney drawn up using the model attached in ***Annex 3***).

The delegation of the authorisation to sign on behalf of the signatories (including, in the case of proxy(-ies), the chain of authorisations) must be evidenced by appropriate written evidence (copy of the notice of appointment of the persons authorised to represent the legal entity in signing contracts (together or alone), or a copy of the publication of such appointment if the legislation which applies to signatory requires such publication or a power of attorney). A document that the contracting authority can access on a national database free of charge does not need to be submitted if the contracting authority is provided with the exact internet link and, if applicable, the necessary identification data to retrieve the document.

4.4. Confidentiality of tenders: what information and under what conditions can be disclosed?

Once the contracting authority has opened a tender, it becomes its property and shall be treated confidentially, subject to the following:

- For the purposes of evaluating the tender and, if applicable, implementing the contract, performing audits, benchmarking, etc., the contracting authority is entitled to make available (any part of) the tender to its staff and the staff of other Union institutions, bodies and agencies, as well to other persons and entities working for the contracting authority or cooperating with it, including contractors or subcontractors and their staff, provided that they are bound by an obligation of confidentiality.

- After the signature of the award decision the contracting authority shall inform each tenderer who is not rejected and who make a request in writing of the name of the successful tenderer to whom the contract is awarded, the characteristics and relative advantages of the successful tender and its total financial offer amount[20]. The contracting authority may decide to withhold certain information that it assesses as being confidential, in particular where its release would prejudice the legitimate commercial interests of economic operators or might distort fair competition between them. Such information may include, without being limited to, confidential aspects of tenders such as unit prices included in the financial tender, technical or trade secrets[21].

- The contracting authority may disclose the submitted tender in the context of a request for

[20] For a call for tenders resulting in multiple framework contracts this information will be provided for all successful tenderers and tenders.

[21] For the definition of trade secrets please see Article 2 (1) of Directive (EU) 2016/943 on the protection of undisclosed know-how and business information (trade secrets) against their unlawful acquisition, use and disclosure.

public access to documents, or in other cases where the applicable law requires its disclosure. Unless there is an overriding public interest in disclosure[22], the contracting authority may refuse to provide full access to the submitted tender, redacting the parts (if any) that contain confidential information, the disclosure of which would undermine the protection of commercial interests of the tenderer, including intellectual property.

☝ The contracting authority will disregard general statements that the whole tender or substantial parts of it contain confidential information. Tenderers need to mark clearly the information they consider confidential and explain why it may not be disclosed. The contracting authority reserves the right to make its own assessment of the confidential nature of any information contained in the tender.

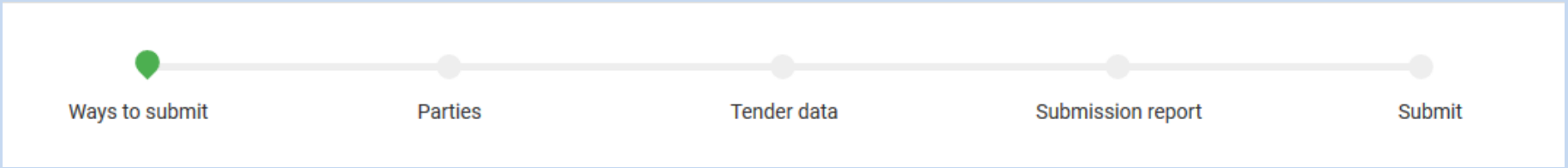
[22] See Article 4 (2) of the Regulation (EC) No 1049/2001 regarding public access to European Parliament, Council and Commission documents.

APPENDIX: LIST OF REFERENCES

Award criteria	See Section 3.4
Contracting authority	See Section 1.1
Entities on whose capacities the tenderer relies to fulfil the selection criteria	See Section 2.4.3
EU Validation services	See Section 2.3 EU Grants and Tenders Rules on Legal Entity Validation, LEAR appointment and Financial Capacity assessment
Exclusion criteria	See Section 3.1
Financial Regulation	Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council of 23 September 2024 on the financial rules applicable to the general budget of the Union (recast) (OJ L, 2024/2509, 26.9.2024, ELI: http://data.europa.eu/eli/reg/2024/2509/oj).
Framework contract	See Section 1.6
Framework contract ceiling	See Section 1.6
Group leader	See Section 2.4.1
Group member	See Section 2.4.1
Identified subcontractors	See Section 2.4.2
Involved entities	See Section 2.4
Joint tender	See Section 2.4.1
Participant Register	See Section 2.3 https://ec.europa.eu/info/funding-tenders/opportunities/portal/screen/how-to-participate/participant-register
Selection criteria	See Section 3.2
Sole tenderer	See Section 2.4
Subcontracting/subcontractor	See Section 2.4.2
Treaties	The EU Treaties: https://europa.eu/european-union/law/treaties_en

ANNEXES

Annex 1. List of documents to be submitted with the tender or during the procedure

Description	Sole tenderer	Joint tender		Identified Subcontractor	Entity on whose capacity is being relied (that is not subcontractor)	When and where to submit the document?	Instructions for uploading in eSubmission (if applicable)	
		Group leader	Group member				How to name the file?	Where to upload?
1. Identification and information about the tenderer. *eSubmission view* 								
Declaration on Honour on Exclusion and Selection Criteria (see Section 3.1) *model in Annex 2*	☒	☒	☒			Tenderers (sole tenderers/all group members in case of a joint tender) must provide the Declaration on Honour on Exclusion and Selection Criteria with their tenders in eSubmission. Subcontractors and entities on whose capacity a tenderer relies to fulfil the selection criteria must provide the Declaration on Honour on Exclusion and Selection Criteria only upon request by the contracting authority.	'Declaration on Honour'	With the concerned entity under 'Parties' →'Identification of the participant' →'Attachments'→'Declaration on Honour'.

Evidence that the person signing the documents is **an authorised representative** of the entity[23] (see Section 4.3)	☒	☒	☒			With the tender in eSubmission	'Authorisation to sign documents'	With the concerned entity under 'Parties' →'Identification of the participant' →'Attachments'→'Other documents'.
Agreement/Power of attorney (see Section 2.4.1) *model in Annex 3*		☒	☒			With the tender in eSubmission	'Agreement Power of attorney'	In the group leader's section under 'Parties' →'Identification of the participant' →'Attachments'→'Other documents'.
List of identified subcontractors (see Section 2.4.2) *model in Annex 4*	☒	☒				With the tender in eSubmission	'List of identified subcontractors'	In the sole tenderer's or the group leader's section under 'Parties' →'Identification of the participant' →'Attachments'→'Other documents'.
Commitment letter (see Section 2.4.2 and 2.4.3)				☒ *(model in Annex 5.1)*	☒ *(model in Annex 5.2)*	With the tender in eSubmission	'Commitment letter'	With the concerned entity under 'Parties' →'Identification of the participant' →'Attachments'→'Other documents'.
Business Partners Form – (signed by the sole tenderer or leader in case of joint tenders): https://commission.europ	☒	☒				With the tender in eSubmission	Business Partners Form	With the concerned entity under 'Parties' →'Identification of the

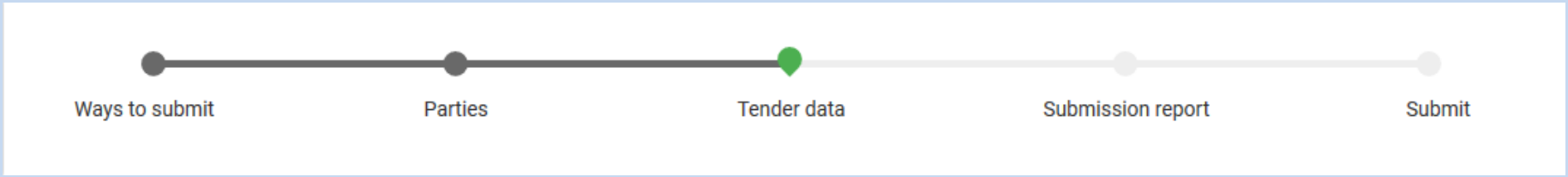
[23] A document that the contracting authority can access on a national database free of charge does not need to be submitted if the contracting authority is provided with the exact internet link and, if applicable, the necessary identification data to retrieve the document.

a.eu/publications/busines s-partners-legal-entities and-bank accounts_en#business partners--legal-entities and-bank-accounts.								participant' →'Attachments'→'Other documents'.
Evidence of non-exclusion (see Section 3.1)	☒	☒	☒			Tenderers (sole tenderers/all group members in case of a joint tender) must provide the evidence with their tenders in eSubmission. Subcontractors and entities on whose capacity a tenderer relies to fulfil the selection criteria must provide the evidence only upon request by the contracting authority.	No specific requirements how to name the file(s).	With the concerned entity under 'Parties' →'Identification of the participant' →'Attachments'→ 'Exclusion criteria'.
Evidence of legal existence and status (see Section 2.3)						Tenderers (sole tenderers/all group members in case of a joint tender) must provide the evidence only upon request by the EU Validation services. At any time during the procedure In the Participant Register	n.a.	n.a.
Evidence of legal capacity (see Section 3.2.1)	☒	☒	☒			With the tender in eSubmission	No specific requirements how to name the file(s).	With the concerned entity under 'Parties' →'Identification of the participant'

								→'Attachments'→'Legal and regulatory capacity'.
Evidence of economic and financial capacity F1 (see Section 3.2.2)	**The documents must be provided** **only by the involved entities** **which contribute to reaching the minimum capacity level** **for criterion F1**					With the tender in eSubmission	Completed Annex 8 – Economic & Financial Capacity	With the group leader or the sole tenderer under 'Parties' →'Identification of the participant' →'Attachments'→'Economic and financial capacity'.
Evidence of technical and professional capacity T1 (see Section 3.2.3)	**The documents must be provided** **only by the involved entities** **which contribute to reaching the minimum capacity level** **for criterion T1**					With the tender in eSubmission	No specific requirements how to name the file(s).	With the group leader or the sole tenderer under 'Parties' →'Identification of the participant' →'Attachments'→'Technical and professional capacity'.
Evidence of technical and professional capacity T2 (see Section 3.2.3)	**The documents must be provided** **only by the involved entities** **which contribute to reaching the minimum capacity level for criterion T2**					With the tender in eSubmission	No specific requirements how to name the file(s).	With the group leader or the sole tenderer under 'Parties' →'Identification of the participant' →'Attachments'→'Technical and professional capacity'
Evidence of technical and professional capacity T3 (see Section 3.2.3)	**This documents must be provided by the sole tenderer or each group member in case of a joint tender**					Only upon request by the contracting authority At any time during the procedure	n.a	n.a.

2. Tender data.

eSubmission view



Failure to upload the following documents in eSubmission will lead to rejection of the tender.

Technical tender (see Section 4.2)	☒	☒				With the tender in eSubmission	'Technical tender'	Under section 'Tender Data' →'Technical tender'
Financial tender (see Section 4.2) *Annex 6 - Model financial offer*	☒	☒				With the tender in eSubmission	'Financial tender'	Under 'Tender Data' →'Financial tender'

Annex 2. Declaration on Honour on exclusion and selection criteria

Annex 3. Agreement/Power of attorney

Call for tenders **EASA/2026/OP/0006** – **Digital Communications Services**

AGREEMENT/POWER OF ATTORNEY

The undersigned:

[- Signatory 1 (Name, Function, Legal entity name, Registered address, VAT Number)]

- Signatory 2 (Name, Function, Legal entity name, Registered address, VAT Number)

- …

- Signatory N (Name, Function, Legal entity name, Registered address, VAT Number)]

having the legal capacity required to act on behalf of the entities they represent,

HEREBY AGREE TO THE FOLLOWING:

1) To submit a joint tender (the tender) as members of a group of tenderers (the group), constituted by ***[Insert names of Legal entity 1, Legal entity 2, ... Legal entity N – the name of the group leader must be included here!]*** (the group members), and led by ***[Insert name of Legal entity 1]*** (the group leader), in accordance with the conditions of the procurement documents and the terms of the tender to which this Agreement/Power of attorney is attached.
2) If the contracting authority awards a contract resulting from this call for tenders (the contract) to the group on the basis of the tender to which this Agreement/Power of attorney is attached, all group members (including the group leader) shall be considered parties to the contract in accordance with the following conditions:
   (a) All group members (including the group leader) shall be jointly and severally liable towards the contracting authority for the performance of the contract.
   (b) All group members (including the group leader) shall comply with the terms and conditions of the contract and ensure the proper delivery of their respective share of the services and/or supplies subject to the contract.
3) Payments by the contracting authority related to the services and/or supplies subject to the contract shall be made through the bank account of the group leader indicated in the contract.
4) The group members grant to the group leader all the necessary powers to act on their behalf in the submission of the tender and the conclusion of the contract, including:
   (a) The group leader shall submit the tender on its own behalf and on behalf of the other group members and indicate in the "Contact Person" section in eSubmission the name and e-mail address of an individual as a single point of contact authorised to communicate officially with the contracting authority in connection with the submitted tender on behalf of all group members, including in connection with all relevant questions, clarification requests, notifications, etc., that may be received during the evaluation, award and until the contract signature.
   (b) The group leader shall sign any contractual documents — including the contract, specific contracts and amendments thereto — and shall warrant the submission of any invoices related to the performance of the contract on behalf of all group members.

(c) The group leader shall act as a single contact point with the contracting authority in the delivery of the services and/or supplies subject to the contract. It shall coordinate the delivery of the services and/or supplies by the group to the contracting authority, and shall see to a proper administration of the contract.

This Agreement/Power of attorney may be executed in counterparts, each of which shall be deemed to be an original, but all of which, taken together, shall constitute one and the same document.

Any modification to the present Agreement/Power of attorney shall be subject to the contracting authority's express approval. This Agreement/Power of attorney shall expire when all the contractual obligations of the group have ceased to exist. The parties cannot terminate it before that date without the contracting authority's consent.

Name
Function
Name of the legal entity

signature[s]:

_____

Done at ..... on

.....

Name
Function
Name of the legal entity

signature[s]:

_____

Done at ..... on

.....

Name
Function
Name of the legal entity

signature[s]:

_____

Done at ..... on

.....

Name
Function
Name of the legal entity

signature[s]:

_____

Done at ..... on

.....

Annex 4. List of identified subcontractors and proportion of subcontracting

Identification details	Roles/tasks during contract execution	Proportion of subcontracting (% of contract volume)
[Full official name of the identified subcontractor, registered address, statutory registration number, VAT registration number]		
[Full official name of the identified subcontractor, registered address, statutory registration number, VAT registration number]		
[REPEAT AS MANY TIMES AS THE NUMBER OF IDENTIFIED SUBCONTRACTORS]		
Other subcontractors that do not need to be identified under Section 2.4.2[24]		
	TOTAL % of subcontracting	0,00%

[24] For this category of subcontractors, please provide in a general manner their intended roles/tasks during contract execution, as well as the aggregated % of contract volume for all non-identified subcontractors.

Annex 5.1. Commitment letter by an identified subcontractor

[Letterhead, if any]

EUROPEAN UNION AVIATION SAFETY AGENCY

Call for tenders Ref. EASA/2026/OP/0006

Attn:

[Insert date]

Commitment letter by identified subcontractor

I, the undersigned,

Name:

Function:

Legal entity:

Registered address:

VAT Number:

having the legal capacity required to act on behalf of ***[insert name of the entity]***, hereby confirm that the latter agrees to participate as subcontractor in the tender of *[insert name of the tenderer]* for the call for tenders **EASA/2026/OP/0006 – Digital Communications Services**.

In the event that the tender of the aforementioned tenderer is successful, ***[insert name of the subcontractor]*** commits itself to make available the resources necessary for performance of the contract as a subcontractor and to carry out the services that will be subcontracted to it in compliance with the terms of the contract. It further declares that it is not subject to conflicting interests, which may negatively affect the contract performance, and that it accepts the terms of the procurement documents for the above call for tenders, in particular the contractual provisions related to checks and audits.

Done at:

Name:

Position:

Signature:

Annex 5.2. Commitment letter by an entity on whose capacities is being relied

[Letterhead, if any]

EUROPEAN UNION AVIATION SAFETY AGENCY

Call for tenders Ref. EASA/2026/OP/0006

Attn:

[Insert date]

Commitment letter by an entity on whose capacity is being relied

I, the undersigned,

Name:

Function:

Legal entity:

Registered address:

VAT Number:

having the legal capacity required to act on behalf of ***[insert name of the entity]***, hereby confirm that the latter **authorises the *[insert name of the tenderer]* to rely on its [financial and economic capacity] [technical and professional capacity] in order to meet the minimum levels** required for the call for tenders **EASA/2026/OP/0006 – Digital Communications Services**.

In the event that the tender of the aforementioned tenderer is successful, ***[insert name of the entity]*** commits itself to make available the resources necessary for performance of the contract. It further declares that it is not subject to conflicting interests which may negatively affect the contract performance, and that it accepts the terms of the procurement documents for the above call for tenders, in particular the contractual provisions related to checks and audits.

Done at:

Name:

Position:

Signature:

Annex 6 – Model financial offer

Annex 6 is published as a separate document

Annex 7 - Confirmation statement

[Letterhead, if any]

EUROPEAN UNION AVIATION SAFETY AGENCY

Call for tenders Ref. EASA/2026/OP/0006

Attn:

[Insert date]

Confirmation statement

concerning **Selection Criterion "Technical and professional capacity" - T 3** (Appendix 2 and 3 of the draft Contract and IT Security Manager)

1. We ***[insert name of the entity]*** hereby confirm that we will implement the necessary organisational and technical measures and mechanisms to prevent, detect and handle any security incident in an appropriate manner in compliance with **Appendix 2** and **3** of the draft Contract.

2. We further confirm availability of our responsible
   - **IT Security Manager** [*enter name and contact details*] **and**
   - **his/her corresponding backup** [*enter name and contact details*].

Done at:

Name:

Position:

Signature:

Annex 8 – SELECTION CRITERIA – 3.2.2 ECONOMIC & FINANCIAL CAPACITY

Name of Tenderer:	
(*In case of consortia:* **Name of Consortium Member:)**	

In line with section 3.2.2 – Economic & Financial Capacity (Selection Criteria) please complete the table below with the information.

a. Statement of Annual Turnover	
Year	**Annual Turnover *(indicating currency)***
<complete>	<complete>
<complete>	<complete>

Electronically signed on 31/08/2026 11:44 (UTC+02) in accordance with Article 11 of Commission Decision (EU) 2021/2121